

CASE 1

1. It is a legitimate dismissal due to economic crisis i.e fall in turnover of BOREAL enterprise
2. Section 40(3) of the labour code provides the procedure for dismissal on economic ground

The problem is to know if the employer has respected the procedure

According to the above he hasn't respected the procedure because of the following:

- He failed to convene the staff representatives
- He failed seek the representatives in the presence of the Labour Inspector

According to Section 40(6a) of the labour code provides the criterion for the order of dismissal, the worker shall be dismissed first based on the precedence of their professional proficiency, then seniority level and finally family responsibilities. So the order will be as follows:

Mrs TITANIC, Mr BOSCO and finally Mr BADO because based on professional proficiency Mrs TITANIC has the lowest category of 6

3. If the contract of employment was of unspecified duration the workers will have rights to:
 - Work Certificate
 - Compensation in lieu of notice
 - Indemnity fee for workers with at least 2 years of seniority
 - Transport fee if displaced

CASE 2

1. Section 25(1a) defines contract of specified duration
 - The problem is to know if the employer has the right to consider that the contract has come to an end
 - According to the above section, a contract of specified duration is 2 years renewable once so a total of 4 years. Conversely from the starting to the ending date of the bridge project, we have a time period of 12 years which transforms this contract to unspecified duration by novation according to section 25(3)
 - Therefore the employer has no right to dismiss those workers as they had a contract of unspecified duration and needed to be given a notice period as specified in section 34
2. According to section 25(3) which talks about novation along side with the allegations made above the employees have the right to claim that their contract was of unspecified duration as 12 years time scope of the bridge project exceeds the maximum duration of a CDD
3. According to section 34(1) that regulates the termination of a contract of unspecified duration, the employees are entitled to the claim of compensation in lieu of notice
 - However according to section 36(1) of the labour code which states that whenever a contract of unspecified duration is terminated without notice, the responsible party shall pay compensation corresponding to the remuneration which the worker would have received for the period of notice not observed.

CASE 3

1. Section 42(1a) regulates modifications of contract due to change of legal status of the employer
The problem is to know if Mrs Yeye and her younger colleagues will be terminated or not

According to that above section, it is stated that “in event of a change in legal status of the employers all contracts of employment in force of the date of the change shall subsist between the new organization”

Therefore the contract of Mrs yeye and her younger colleagues will subsist under the new company SAVOIFARE

2. According to section 42(1b) she can escape from being absorbed by the company if she express the before the labour inspector her desire to be laid off
3. Yes because according to section 42(1b) in case the enterprise changes its activities all the contracts under the previous company won't subsist

CASE 4

1. Section 39(1) regulates dismissal based on political parties membership
 - The problem is to know whether TOTO dismissal is legitimate, abusive or irregular
 - According to the above section of the labour law ,it is wrongful to dismiss an employee using motives as political membership, racism, religious inclination etc.
 - Therefore, TOTO dismissal is abusive
2. The rights of an employee:
 - Work certificate
 - Holiday pay
 - Transport fee if displaced
 - Indemnity fee if seniority atleast 2years

CASE 5

1. According to section 40(2) this dismissal refers to legitimate dismissal on economic grounds as the employer faces economic crisis due to a fall in turnover putting his employees in technical unemployment.
2. According to section 40(3) the procedure to be followed by the employer is given as follow:

Convene the staff representatives to seek with them in the presence of the labour inspector other possibilities such as:

- Implement Reduction of working hours
 - Implement Shift work
 - Implement part-time work
 - Implement layoffs
 - Review bonuses and allowances
 - Cut Wages
3. According to Section 40(6a) of the labour code provides the criterion for the order of dismissal, the worker shall be dismissed first based on the precedence of their professional proficiency, then seniority level and finally family responsibilities. So the order will be as follows:
 - Mrs Beaute first
 - Mr TOTO second
 - Mr MBUH last because he has the highest responsibilities as a single father

CASE 6

1. FUTURA should do a temporary contract with the specialist because it is best suited for fixed duration projects.
2. It has a duration not exceeding 3 months and renewable once with the same company

CASE 7

1. Section 28(1) defines a probationary contract but for this case we will refer to section 43 of the labour code which says that probationary hiring contractions can be terminated without notice and without either party claiming for compensation

Therefore Mr DIAROU has no claims to do

CASE 8

1. Section 25(4a) talks about temporary employment contract
The problem is to identify the nature of the contract between Mr DESIRE and the insurance company
According to the above section a temporary contract will refer to one in which the employer will temporary replace an employee on leave with the contractor until he is able to come back. It is general for a period not exceeding 3 months and renewable once with the same company
Therefore Mr DESIRE's contract is a temporary contract because he is replacing Mrs SOFI who is on maternity leave
2. According to the section 25(4a) it is said that "The above provisions shall not apply to workers recruited to carry out exclusively : a temporary job in replacement ..." which means that compensation in lieu of notice as well as all the other claims in a CDI and CDD termination is not applicable to temporary contracts termination
Therefore, Mr DESIRE claims are not justified by the law
3. Section 38 talks regulates early termination of specified duration contract
According to the above section, yes, we can terminate a fixed term employment contract in case of:
 - Written mutual consent of both parties
 - Force majeure
 - Gross misconduct by one party

CASE 9

1. The purpose of the notice period is to signal to the other party that we wish to terminate the contract so that they can have time to get a replacement (if initiated by the employee) or found another job (if initiated by the employer)
2. The table below shows the notice period:

Names	Post occupied	Socio professional category	Recruitment Date	Notice Period	Seniority
BISSECK	Driver	5	4/4/2012	1 or 2 months	11yrs
ESSONO	Seller	6	10/1/2023	15 days	<1yr
HAMADOU	Gate keeper	2	2/6/2023	15 days	<1yr
SOH	Head of sales department	10	5/4/2021	3 months	2yrs

TALLA	Store keeper	7	1/4/2022	2 months	1yr
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Where Seniority = Closure date - Recruitment date

3. According to Section 34(2) which states that "The notice period shall start to run from the date of such notification. It shall not be subject to any condition of precedence or condition subsequent. Under no circumstances may it be set off against the leave of the worker". Therefore Mr TALLA cannot serve the remainder of its notice period as once elapsed it cannot be regained despite him being on illness leave.
4. According to the section 36(1) which regulates the termination of a contract of unspecified duration Mr TAMO has already given a notice period to all employees as the law requires and hence none of these employees can claim for compensation in lieu of notice.
5. According to section 37 (1) of the labour code in case of serious misconduct or gross negligence the worker's contract shall be terminated with a severance pay given if his seniority is atleast 2 years.
6. According to section 36(1) , the party responsible party shall pay compensation corresponding to the remuneration including any bonuses and allowances which the worker will have received for the notice period not observed.

CASE 10

Section 43 of the labour code regulates the termination of probationary hiring contract

The problem is know whether Mr ATANGANA is required serve a notice or compensation in lieu of notice to his employer

According to the above article mentioned a probationary contract shall be terminated without notice and without either party having to claim compensation.

Therefore Mr ATANGANA who was on trial (probation) for 3 months do not need to serve neither notice nor a compensation in lieu of notice

CASE 11

1. No he isn't right because Mr KENE's contract was a verbal one and hence cannot be a probationary contract because probationary contract must be in written form according to section 28(2). So it is deduced that Mr KENE's contract could be of unspecified duration
2. Section 28(2) stipulates that a probationary contract must be written

CASE 12

1. Can a worker absent for several weeks without justification be considered to have resigned?

No.

Resignation must be:

- clear,
- voluntary,
- unequivocal.

A prolonged absence alone does not automatically amount to resignation.

Mr. DONGMO was absent because of a traffic accident, which may constitute a justified cause linked to illness or incapacity. However, he failed to provide supporting documents to the employer.

Therefore, the employer could discipline or dismiss him for misconduct or unjustified absence, but cannot simply “take note of his resignation” without proof of a clear intention to resign.

Relevant principles:

Resignation must be express and voluntary.

Section 32 L.C. on suspension due to illness/accident.

2. Qualification of the dismissal

The dismissal is likely an abusive/unfair dismissal because:

- the employer wrongly treated the absence as resignation,
- no clear resignation was expressed by the worker,
- the employer failed to properly characterize the dismissal.

The employer should have:

- requested explanations,
- verified the worker’s situation,
- possibly dismissed for misconduct if unjustified absence was established.

Therefore, this is an abusive dismissal under:

Section 39(1) L.C.

3. Rights of Mr. DONGMO

Since the dismissal is abusive, Mr. DONGMO is entitled to:

- Notice or compensation in lieu of notice;
- Dismissal benefits/severance pay (if eligible by seniority);
- Annual leave pay;
- Work certificate;
- Transport expenses to his residence if displaced;
- Damages and interest for abusive dismissal.

Relevant provisions:

Sections 35 and 39 L.C.

If the employer proves serious misconduct due to unjustified abandonment of post, some rights such as notice compensation may be lost. However, based on the facts given, the employer improperly qualified the situation as resignation.